

□ Your Safety Comes First

Some of what you shared suggests you may be dealing with a situation that could put your safety at risk. You are not alone, and help is available right now — you do not need a lawyer or any money to reach it.

If you are in immediate danger, call 911.

You can reach trained, confidential help any time:

- **National Domestic Violence Hotline** — call 1-800-799-7233, or text START to 88788 (<https://www.thehotline.org>)
- **National Dating Abuse Helpline** — call 1-866-331-9474, or text LOVEIS to 22522
- **National Immigrant Women's Advocacy Project** (<https://niwaplibrary.wcl.american.edu>)
- **Immigration Advocates Network** (<https://www.immigrationadvocates.org>)
- **Text the Crisis Text Line:** text HOME to **741741** (open 24/7, for any kind of crisis)
- A safety plan can help you prepare for emergencies. The National DV Hotline can help create one.

Asking a court to protect you. If someone has hurt you or made you afraid, you can ask a court for an **Order for Protection** (sometimes called a restraining order). It is a free request you can make yourself: the court clerk's

office or a local advocate can give you the forms and walk you through them, often the same day. A domestic violence advocate (reachable through the hotline above) can help you fill them out and can go with you.

You get to decide what feels safe for you. The steps above are here whenever you are ready.

□ Deadlines & Time-Sensitive Items

Read this first. Missing a legal deadline can end a case. The dates below are estimates generated automatically — **always confirm the exact date with the court or a lawyer.**

□ I came to this country on August 14, 2019. — DEADLINE MAY HAVE PASSED

- **Estimated deadline:** 2020-08-14
- **Basis:** INA § 208(a)(2)(B); 8 U.S.C. § 1158(a)(2)(B) (one-year filing deadline)
- **Triggering event:** entry on 2019-08-14
- **WARNING:** this deadline appears to have ALREADY PASSED as of 2026-07-11. Asylum applications generally must be filed within one year of arrival in the United States. Estimated — confirm the exact date with the court or a lawyer. Because this one-year asylum deadline appears to have already passed, you may still be able to apply if an EXCEPTION applies: 'changed circumstances'

that materially affect eligibility, or 'extraordinary circumstances' that excuse the late filing (for example serious illness, or ineffective assistance / fraud by a notario or non-lawyer). This exception pathway is governed by INA § 208(a)(2)(D); 8 U.S.C. § 1158(a)(2)(D). Ask an immigration lawyer whether one of these exceptions applies to you — the late deadline may not be the end of your asylum claim.

⚠ **The court hearing is scheduled for August 20, 2026.**

- **Estimated deadline:** 2026-08-20
 - **Basis:** The hearing date on your Notice to Appear / EOIR hearing notice (8 C.F.R. § 1003.18; INA § 239). Failure to appear can result in an in-absentia removal order.
 - **Triggering event:** hearing on 2026-08-20
 - **Jurisdiction:** MN
 - This is the hearing date printed on your immigration court notice — you must appear. Estimated — confirm the exact date with the court or a lawyer.
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⚠ **Danilo hit me again on March 15 this year.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
 - **Triggering event:** incident on 2026-03-15
 - **Jurisdiction:** MN
 - Estimated — confirm the exact date with the court or a lawyer.
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Executive Summary

This report found 10 legal issues in Federal and Minnesota law. The main issues are about jobs, Social Security, and child custody. You have missed at least one important deadline. You came to this country on August 14, 2019. The deadline to file was one year later, on August 14, 2020. Check this right away. Missing deadlines can end your case. There are also safety concerns in this report. See the safety resources below. The analysis is 75% complete. There are 13 questions below that would help improve this assessment.

Completeness Score: 75%

Triage & Routing Recommendations

Primary Practice Area: General Civil

Primary Jurisdiction: General

Complexity: High

Urgency: Emergency

Ranked Recommendations

1. General Civil (Score: 0.46)

General Civil practice area (50% of claims); mixed jurisdictions (60% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	50%
Jurisdiction Match	60%
Complexity Score	20%

2. Immigration (Score: 0.36)

Immigration practice area (20% of claims); mixed jurisdictions (60% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	20%
Jurisdiction Match	60%
Complexity Score	20%

3. Family Law (Score: 0.36)

Family Law practice area (20% of claims); mixed jurisdictions (60% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	20%
Jurisdiction Match	60%
Complexity Score	20%

4. Employment (Score: 0.33)

Employment practice area (10% of claims); mixed jurisdictions (60% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	10%
Jurisdiction Match	60%
Complexity Score	20%

Action Items

Documents to Gather

- [] **[HELPFUL]** Element 'Jurisdiction' is not yet supported by any facts
 - **Claim:** Restraint Order Claim
 - **Element:** Jurisdiction

Follow-up Steps

- [] **[URGENT]** PAST-DUE? Confirm the deadline for: I came to this country on August 14, 2019. (estimated 2020-08-14; INA § 208(a)(2)(B); 8 U.S.C. § 1158(a)(2)(B) (one-year filing deadline)).
WARNING: this deadline appears to have ALREADY PASSED as of 2026-07-11. Asylum applications generally must be filed within one year of arrival in the United States. Estimated — confirm the exact date with the court or a lawyer. Because this one-year asylum deadline appears to have already passed, you may still be able to apply if an EXCEPTION applies: 'changed circumstances' that materially affect eligibility, or 'extraordinary circumstances' that excuse the late filing (for example serious illness, or ineffective assistance / fraud by a notario or non-lawyer). This exception pathway is governed by INA § 208(a)(2)(D); 8 U.S.C. § 1158(a)(2)(D). Ask an immigration lawyer whether one of these exceptions applies to you — the late deadline may not be the end of your asylum claim.
 - **Deadline:** 2020-08-14
- [] **[URGENT]** Confirm the deadline for: The court hearing is scheduled for August 20, 2026. (estimated 2026-08-20; The hearing date on your Notice to Appear / EOIR hearing notice (8 C.F.R. § 1003.18; INA § 239). Failure to appear can result in an in-absentia removal order.). This is the hearing date printed on your

immigration court notice — you must appear. Estimated — confirm the exact date with the court or a lawyer.

◦ **Deadline:** 2026-08-20

- [] **[URGENT]** You described being hurt by a spouse who is a U.S. citizen or green-card holder. Federal law (VAWA) may let you apply for immigration status on your own, without their help or knowledge — this is called a VAWA self-petition. Has a lawyer ever talked with you about whether you qualify? [Authority: INA § 204(a)(1); 8 U.S.C. § 1154 (VAWA self-petition)]
- [] **[URGENT]** What you described — being physically hurt or threatened by a family or household member — may qualify you for an Order for Protection (a court order that can be issued the same day you ask, before any hearing). In Minnesota this is Minn. Stat. § 518B.01; other states have an equivalent. Would you like information about asking the court for one now, separate from any other case? [Authority: Minn. Stat. § 518B.01 (Order for Protection; ex parte relief available)]
- [] **[URGENT]** You said you were the victim of a crime and helped the police. Victims of certain crimes who cooperate with law enforcement may qualify for a U visa (U nonimmigrant status). This needs a certification form (I-918B) signed by the police or prosecutor — has anyone requested one for you? [Authority: INA § 101(a)(15)(U); 8 U.S.C. § 1101(a)(15)(U) (U nonimmigrant status; Form I-918 Supplement B certification)]
- [] **[URGENT]** Asylum applications normally must be filed within one year of arriving in the U.S. If your first year has passed — including if someone who was not a real lawyer took your money and never filed — you may still qualify under the 'changed circumstances' or 'extraordinary circumstances' exceptions (fraud by a notario can count). Ask a lawyer about the one-year-bar exceptions. When did you arrive, and did anyone ever actually file an asylum application for you? [Authority: INA § 208(a)(2)(B), (D); 8 U.S.C. § 1158(a)(2)(B), (D) (one-year bar; changed/extraordinary-circumstances exceptions)]

- [] **[URGENT]** You mentioned working with a Social Security number that is not yours. Working without authorization can normally block a green-card application filed inside the U.S. (the INA § 245(c)(2) bar) — BUT people approved under VAWA are exempt from that bar. A lawyer should review this together with any VAWA option. Have you told a lawyer about this work history? [Authority: INA § 245(c)(2); 8 U.S.C. § 1255(c)(2) (unauthorized-employment bar; VAWA self-petitioners exempt)]
- [] **[URGENT]** About the immigration papers (Notice to Appear) you received: did that first notice state the exact TIME, DATE, and PLACE of your court hearing, or were those details missing or sent later? A notice missing those details can matter to your case (it can affect eligibility clocks) — bring the original papers to a lawyer. [Authority: Pereira v. Sessions, 138 S. Ct. 2105 (2018); Niz-Chavez v. Garland, 141 S. Ct. 1474 (2021) (defective Notice to Appear)]
- [] **[IMPORTANT]** Potential claim 'Abuse History Documentation Claim' has not been explored with fact mappings
 - **Claim:** Abuse History Documentation Claim
- [] **[IMPORTANT]** Potential claim 'Child Custody Claim' has not been explored with fact mappings
 - **Claim:** Child Custody Claim
- [] **[IMPORTANT]** What is the date of the scheduled immigration hearing, and have you received any notices regarding it?
 - **Claim:** In-absentia Removal Claim
- [] **[IMPORTANT]** Have you reported the domestic violence incidents to law enforcement, and are there any records of police involvement or charges filed?
 - **Claim:** Domestic Violence Claim
- [] **[IMPORTANT]** Have you filed for or considered filing a restraining order to ensure your safety from Danilo?
 - **Claim:** Restraint Order Claim

- [] **[IMPORTANT]** Have you informed the authorities about your status as a victim of crime, and are you aware of your rights under the Minnesota Crime Victim Rights Act?
 - **Claim:** Victims of Crime Rights Claim
- [] **[IMPORTANT]** What specific actions did Rigoberto take with respect to your asylum application, and have you confirmed the status of this application?
 - **Claim:** Asylum Case Claim
- [] **[IMPORTANT]** Do you have any records or documentation related to your use of someone else's social security number, and have you sought legal advice regarding this matter?
 - **Claim:** Employment and Social Security Issue
- [] **[IMPORTANT]** Do you understand your rights in the ongoing criminal proceedings against Danilo, and have you been advised about how these may impact your immigration case?
 - **Claim:** Criminal Proceedings Awareness
- [] **[IMPORTANT]** Have you established any legal custody arrangements concerning your child, and do you understand your rights regarding child support?
 - **Claim:** Child Custody and Support Issue
- [] **[IMPORTANT]** Have you been able to document the instances of abuse, and do you have any evidence that can support your claims in your immigration case?
 - **Claim:** Abuse History Documentation Claim
- [] **[IMPORTANT]** Are you aware of how your immigration status and any potential removal proceedings may affect your custody rights concerning your child?
 - **Claim:** Child Custody Claim